

usually tolerated in a civilized community. (*Ross v. Creel Printing & Publishing Co. Inc.* (2002) 100 Cal.App.4th 736, 745.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff’s interest; (2) knows the plaintiff is susceptible to injury through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Hernandez v. General Adjustment Bureau* (1988) 199 Cal.App.3d 999, 1007.) This cause of action must be pleaded with specificity. (*Schlauch v. Hartford Accident Ins.* (1983) 146 Cal.App.3d 926, 936.) This requires that the pleading allege “facts demonstrating the nature, extent or duration of [plaintiff’s] alleged emotional distress.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.)

Negligent infliction of emotional distress (“NIED”) is a form of negligence, which includes the elements of duty, breach, causation and damages. (*Huggins v. Longs Drug Store* (1993) 6 Cal.4th 124, 129.) There are two theories of NIED recovery: the “bystander” theory and the “direct victim” theory. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1071.)

The FAC only brings this cause of action against Onity/OCWEN and PHH as relevant to this demurrer. The same issue with a lack of any alleged conduct undertaken by OCWEN/Onity and PHH subjects this cause of action to demurrer. The general references to “outrageous conduct” are insufficient without any facts identifying conduct are alleged elsewhere. The FAC states OCWEN/Onity and PHH accepted the assignment of the unenforceable Second Mortgage. (FAC, ¶ 120.) It then alleges that the same parties then sold the second mortgage. (*Id.* at ¶ 121.) But this contradicts the rest of the allegations – specifically that defendant Fieldstone transferred the Second Mortgage to Litton (*id.* at ¶ 27) and then assigned it again to Real Time. (*Id.* at ¶ 34.) Without any other allegations that state any conduct taken as to OCWEN/Onity and PHH, the allegations are insufficient.

The court sustains the demurrer to the sixth cause of action as to Onity/OCWEN and PHH, and grants one final 30 days leave to amend.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502047	MANZO vs REAL TIME RESOLUTIONS, INC	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

See #2 above.